

25LBCV01965 25LBCV01965

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-22

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Case Number: 25LBCV01965 Hearing Date: September 22, 2026 Dept: S27

1. Background

Facts

Plaintiff, Maria Guadalupe Guerrero

Villasenor filed this action against Defendants, Julio Jonatan Oliva Benavides and JJ Oliva Transport, Inc. for damages arising out of an automobile accident. Plaintiff filed her complaint on 7/08/25.

The Court heard an OSC re: proof of service on 10/01/25 and continued it to 12/05/25. On 12/05/25, the Court continued the matter to 1/21/26. On 1/21/26, the Court imposed monetary sanctions and continued the OSC re: proof of service to 3/26/26. Prior to 3/26/26, Plaintiff filed an application to serve the summons and complaint by publication. On 3/26/26, the Court imposed further monetary sanctions, continued the OSC re: proof of service to 5/20/26, and set an OSC re: dismissal for 5/20/26. On 5/20/26, Plaintiff appeared at the hearing through her attorney and requested dismissal of the action without prejudice.

2. Motion

to Vacate Dismissal

a.

Relief Sought by Plaintiff

On 6/12/26, Plaintiff filed this motion to vacate the dismissal, contending it was entered as a result of her attorney's mistake or excusable neglect in failing to have the summons and complaint served by publication, which was not completed because the staff member

handling the service took an unexpected medical leave.

Plaintiff contends "the Court"

dismissed the action on 5/20/26. The

Court's minute order indicates Plaintiff requested dismissal. To the extent the Court dismissed the action

on its own motion, the dismissal was entered without any statutory or other

authority for dismissing the action. CCP

§583.420(a)(1) permits the Court to dismiss an action if the summons and

complaint are not served within two years after the action is filed. §583.410 also permits the Court to dismiss an

action if the case is not brought to trial within two years after filing. There are various other statutes that permit

dismissal of an action, none of which apply here. Pursuant to Lyons v. Wickhorst (1986) 42

Cal.3d 911, 915-917, the Court's powers to dismiss absent a statutory basis are

extremely limited, and can only be applied in sham actions or where a delay of

less than the statutory period has been prejudicial to the other party. Because the dismissal was entered without

statutory or other basis, to the extent the Court dismissed the action, the

dismissal is void and the Court vacates the dismissal.

To the extent Plaintiff dismissed

the action, the Court finds the dismissal is not void. Plaintiff's attorney, however, adequately

explains that the failure to serve Defendants was due to excusable neglect at

the law firm, as the staff member tasked with serving Defendants by publication

took unexpected medical leave. To the

extent Plaintiff dismissed the action, the motion to vacate the dismissal is

granted per the mandatory relief provision in CCP §473(b).

b. Future

Hearings

Plaintiff has not, to date, filed

proof of service of the summons and complaint on Defendants. The Court sets an OSC re: proof of service for

November 4, 2026.

Plaintiff is ordered to give notice.